

25VECV06960 25VECV06960

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-20

Motion: DEFENDANT SOHEIL GOEL'S MOTION TO COMPEL INITIAL RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE

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Case Number: 25VECV06960 Hearing Date: August 20, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST
DISTRICT

FARZAN ALAMIRAD, et al.

Plaintiffs,

vs.

LEYLA SOLYMANI ZANJANI, et al.

Defendants.

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GOEL'S MOTION TO COMPEL INITIAL RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE

8:30 a.m.

August 20, 2026

A. BACKGROUND

This case arises from a dispute between tenants (father and daughter), their former landlords, and other landlord-affiliated parties.

On December 8, 2025, Plaintiffs Farzan Alamirad ("Farzan") and Deanna Alamirad ("Deanna") (collectively, "Plaintiffs") filed their original complaint against Defendants Leyla Solymani Zanjani ("Zanjani"); Esrafil Hervani ("Esrafil"); Shayan Hervani ("Shayan"); Noura Hervani a/k/a Dr. Noura Aghaei Hervani, DDS, NPI 1710685789 ("Noura");

Fatame Tehrani a/k/a Simin Tehrani ("Tehrani"); Nadi Mirvahabi ("Nadi"); Nadreh Hadji Mirvahabil ("Nadreh"); Soheil Goel ("Soheil"); and Goel Business Corporation ("GBC"), alleging: (1) wrongful eviction against Zanjani, Esrafil, Shayan, and Noura; (2) abuse of process against Zanjani, Esrafil, Shayan, and Noura; (3) intentional infliction of emotional distress ("IIED") against all Defendants; (4) animal cruelty against Zanjani, Esrafil, Shayan, and Noura; (5) conversion against Zanjani, Esrafil, Shayan, and Noura; (6) defamation against Zanjani, Tehrani, Soheil, Nadi, and Nadreh; (7) disability discrimination against Tehrani, Zanjani, Esrafil, Shayan, and Noura; (8) harassment against Tehrani, Zanjani, Esrafil, Shayan, and Noura; (9) private nuisance against Tehrani; (10) premises liability against Tehrani; (11) breach of contract against Tehrani; (12) retaliation against Tehrani; (13) tortious interference with contract against Zanjani and Soheil; (14) fraud against Zanjani, Nadi, and Nadreh; (15) malicious prosecution against Zanjani, Esrafil, Shayan, and Noura; (16) false light invasion of privacy against all Defendants; (17) elder abuse against all Defendants; and (18) fraud on the court / spoliation of evidence against Zanjani, Esrafil, Shayan, Noura, and Nadi.[1]

On March 4, 2026, the Court sustained, with leave to amend, Soheil and GBC's demurrer to the original complaint.

On March 16, 2026, Plaintiffs filed their first amended complaint (the "FAC"), alleging: (1) wrongful eviction against Zanjani, Esrafil, Shayan, and Noura; (2) abuse of process against Zanjani, Esrafil, Shayan, and Noura; (3) IIED against all Defendants; (4) negligence against Zanjani, Esrafil, Shayan, and Noura; (5) conversion against Zanjani, Esrafil, Shayan, and Noura; (6) defamation against Zanjani, Tehrani, Soheil, Nadi, and Nadreh; (7) disability discrimination against Tehrani, Zanjani, Esrafil, Shayan, and Noura; (8) harassment against Tehrani, Zanjani, Esrafil, Shayan, and Noura; (9) private nuisance against Tehrani; (10) premises liability against Tehrani; (11) breach of contract against Tehrani; (12) retaliation against Tehrani; (13) intentional interference with contract against Zanjani and Soheil; (14) fraud against Zanjani, Nadi, and Nadreh; (15) malicious prosecution against Zanjani, Esrafil, Shayan, and Noura; (16) false light invasion of privacy against all Defendants; and (17) elder abuse against all Defendants.

On March 20, 2026, Soheil served his requests for production of documents, set one ("RPD") on Farzan. (Cheren Decl.,

¶ 5; Ex. A.)

As of May 15, 2026, Farzan had not served his initial responses to the RPD.

On May 15, 2026, Soheil filed the instant motion to compel Farzan's initial responses to the RPD. Soheil also requests monetary sanctions.

On August 6, 2026, Farzan filed an opposition.

On August 11, 2026, Soheil filed a reply.

B. RULING

Defendant

Soheil Goel's motion to compel initial responses to requests for production, set one, is GRANTED.

Plaintiff

Farzan Alamirad is ORDERED to pay monetary sanctions in the reduced amount of \$1,500.00

C. LEGAL STANDARD

Where a party

fails to serve timely responses to discovery requests, the court may make an order compelling responses. (Code Civ.

Proc., § 2031.300; Sinaiko Healthcare Consulting, Inc. v. Pacific

Healthcare Consultants (2007) 148 Cal.App.4th 390, 403.) A party that fails to serve timely responses waives any objections to the request, including ones based on privilege or the protection of attorney work product.

(Code Civ. Proc., §2031.300, subd. (a).)

The court may

relieve that party from waiver if the party served substantially compliant responses and the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2031.300, subd. (a).)

Unlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit and the propounding party has no meet and confer obligations. (Sinaiko Healthcare Consulting, Inc., supra, 148 Cal.App.4th 390, 404.)

D. DISCUSSION

Soheil moves to compel Farzan's initial responses to the RPD.

1. Motion to Compel Initial Responses

On March 20, 2026, Soheil propounded the RPD on Farzan. At the time of filing the instant motion, on May 15, 2026, Farzan had not served responses. (Cheren Decl., par. 10.)

Farzan opposes Soheil's motion on the grounds that substantive responses were served on May 18, 2026. (Alamirad Decl., Ex. 2.) Farzan contends he made Soheil aware he was actively attempting to comply with discovery obligations. (Opp., pp. 8-9.)

However, Farzan's responses were not substantive, as Farzan served objections only. (See Alamirad Decl., Ex. 3.) Second, Farzan does not contend his failure to serve timely responses was a result of mistake, inadvertence, or excusable neglect. Farzan only argues he was acting in good-faith and actively attempting to comply as a self-represented litigant. As a result, Farzan's failure to serve timely responses waives any objections to the request. Farzan's untimely served responses on May 18, 2026, do not relieve the waiver.

Accordingly, Soheil's motion to compel initial responses is GRANTED.

2. Monetary

Sanctions

The court shall

impose a monetary sanction against any party who “unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).)

Soheil requests

monetary sanctions against Farzan in the amount of \$3,000.00, consisting of four hours preparing the base motion plus an additional 0.5 hours to adapt it to one motion regarding requests for production and one motion regarding special interrogatories, 1 hour to review an opposition and prepare a reply brief, and 1 hour attending the hearing at an hourly rate of \$500.00. (Cheren Decl., ¶ 18.) The Court finds four hours for drafting a simple discovery motion to be excessive, and reduces the amount to \$1,500, consisting of 1.5 hours drafting the motion, 1 hour preparing a reply, and .5 hour attending the hearing at an hourly rate of \$500.00.

E. CONCLUSION

Defendant Soheil Goel's motion to compel initial responses to requests for production, set one is GRANTED.

Plaintiff Farzan Alamirad is ORDERED

to pay monetary sanctions in the reduced amount of \$1,500.00

Soheil is ORDERED to give notice.

DATED: August 20, 2026

Lee S. Arian

Judge of the
Superior Court